

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
OTMAN BENYAHIA,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. BRIAN FAUGHT and
SGT. ANDREW CHIN,

Defendants.

----- X

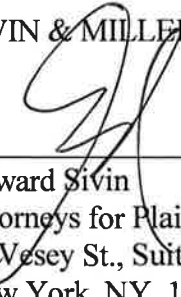
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 13, 2017

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York
c/o NYC Corporation Counsel
100 Church Street
New York, NY 10007

P.O. Brian Faught
c/o NYPD 114th Precinct
34-16 Astoria Blvd S.
Astoria, NY 11103

Sgt. Andrew Chin
c/o NYPD IAB
315 Hudson Street, 3rd Floor
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
OTMAN BENYAHIA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. BRIAN FAUGHT and
SGT. ANDREW CHIN,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Queens, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the date when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the City on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the City has neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant P.O. Brian Faught (hereinafter "Faught") was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Faught was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Faught was acting under color of state law.

8. That at all times herein mentioned, defendant Sgt. Andrew Chin (hereinafter "Chin") was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Chin was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Chin was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on January 21, 2017, at plaintiff's residence at 2808 Steinway Street, Astoria, NY, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Faught and Chin (hereinafter referred to collectively as "the officers"), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff or any occupants of his residence had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly entered plaintiff's residence without permission or consent and then forcibly seized and otherwise used force against plaintiff that was neither justified

nor reasonable under the circumstances, including but not limited to violently throwing plaintiff to the ground.

13. That the officers also forcibly detained and falsely imprisoned plaintiff by holding plaintiff without justification against his will and without his consent inside his apartment.

14. That all of the officers observed the illegal conduct of their fellow officers, had a reasonable opportunity to intervene to prevent and/or stop that illegal conduct, and deliberately chose and failed not to do so.

15. That the aforesaid actions by Faught and Chin and the other NYPD officers were intentional and malicious in nature.

16. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, hospital and other medical expenses, and other economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That the aforementioned actions of the officers constitute an assault and battery against plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

20. That the aforementioned actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS
FAUGHT AND CHIN
(42 USC § 1983 Claim Arising From Fourth Amendment Violation)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforementioned actions of defendants Faught and Chin and the other officers constitute illegal searches and seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforesaid incident and resulting damage to plaintiff was due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention Faught and Chin and the other involved NYPD officers.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claim)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforesaid incident and resulting damage to plaintiff was due a deliberate indifference by the City to a pattern of unconstitutional conduct by Faught and Chin and the other involved NYPD officers, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

27. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Faught and Chin, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
July 13, 2017

Yours, etc.
SIVIN & MILLER, LLP

By


Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

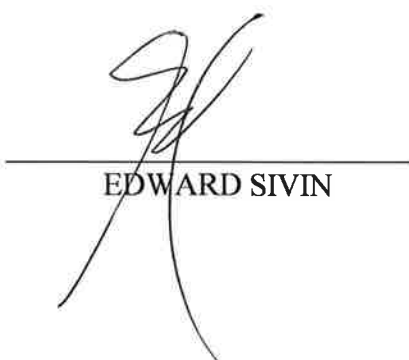
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 13, 2017



EDWARD SIVIN